

SFIO Vs. Adarsh Build Estate Ltd

CIS COMA/05/2019

Present: Sh. Vishal Gupta Learned counsel for applicant.

Heard on the application filed by applicant Raj Kumar Bohara in COMA/05/2019 titled as Serious Fraud Investigation Office Vs. Adarsh Build Estate Ltd and others seeking permission to travel abroad. The application is supported with an affidavit furnished by applicant Raj Kumar.

2. It is averred in the application that applicant is a NRI. His wife Nita Bohra and three children are staying in Dubai, UAE. His wife is suffering severe depression and he has to take care of his wife and children. UAE is his primary place of business as applicant is managing partner of RKC International General Trading LLC. The major export business of applicant is in Bangladesh and owing to his business obligations, the applicant frequently travels from India to UAE and Bangladesh. It is averred that earlier also applicant had travelled abroad and returned well in time. Hence the present application.

3. Learned Prosecutor on behalf of SFIO has endorsed no objection on the margin of the application.

4. In the light of above situation, this court is of the view that reasons mentioned by applicant in his application seeking permission to travel abroad is genuine. The present complaint is fixed for 9.12.2022. Keeping in view the facts mentioned in the application that the applicant-accused has his family (wife and children) in UAE and he is partner in RKC International General Trading LLC, in India also, the applicant-accused has business interests as is a Chartered accountant registered with Institute of Chartered Accountants of India and also a partner in M/s Sampati Lal Bohra and Company, he has already been granted permission to travel UAE and Dubai vide orders dated 19.01.2021 and 25.02.2021 by the Court of Dr. D.N. Bhardwaj, learned Additional Sessions Judge, Gurugram and by the court of Sh. Phalit Sharma, learned Addl. Sessions Judge, Gurugram vide order dated 15.09.2021, which concession he did not misuse, this Court is inclined to accept the request so made. Hence, the applicant-accused Raj Kumar Bohara is permitted to travel abroad after 18.10.2022 with direction to return to India before the date fixed i.e. 9.12.2022 subject to the following terms and conditions:

(i) That prior to leaving the country the applicant will furnish security of some immovable property/bank guarantee worth Rs. 1 Crores in favour of this court and in case he misuses the concession to travel abroad, then the security amount would be forfeited to State.

(ii) That applicant will follow strictly his travel itinerary as communicated through application in hand.

5. The surety Ajay Kumar Arora had furnished affidavit to the effect that he had already stood surety for accused Raj Kumar and submitted a security of Rs. 1 crore. He stated that he is willing to continue as a surety on behalf of accused Raj Kumar and undertake to produce accused Raj Kumar on the next date of hearing. The statement of surety Ajay Kumar Arora in this regard also recorded separately.

6. Accordingly application disposed off and tagged with the main case file.

Date of Order:18.10.2022
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(Dr. Virender Parshad)
Addl. Sessions Judge,
Gurugram UID HR 0082